

Amendment No. 1 to SB0881

Bailey
Signature of Sponsor

AMEND Senate Bill No. 881*

House Bill No. 1244

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 56-7-3110, is amended by deleting the language "sanctions described in § 56-2-305" and substituting "sanctions described in § 56-2-305, subject to § 56-2-305(c)(7)".

SECTION 2. Tennessee Code Annotated, Section 56-2-305(c), is amended by adding the following as a new subdivision:

(7) Violations by a pharmacy benefits manager, as defined in § 56-7-3102.

SECTION 3. Tennessee Code Annotated, Title 56, Chapter 7, Part 31, is amended by adding the following as a new section:

56-7-3124. Timely reimbursements of health insurance claims.

(a) A pharmacy benefits manager regulated under this part is subject to § 56-7-109 and its requirements for timing of payments to pharmacists.

(b) Notwithstanding the penalties set out in this part, a violation of the prompt pay standards is governed by the penalties set out in § 56-7-109.

SECTION 4. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it, and applies to conduct occurring on or after the effective date of this act.